

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

MARTIAL AMILCAR,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE GREGORY
VASQUEZ, Shield No. 3657, DETECTIVE FLAGUMY
VALCOURT, Shield No. 3636, SERGEANT DAVID
GRIECO, Shield No. 3830, and POLICE OFFICERS
JOHN DOES #s 1-4 (names and numbers of whom are
unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 23, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE GREGORY VASQUEZ, Shield No. 3657, Gun Violence Suppression
Division, Zone 1
DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, Criminal Intelligence Section
SERGEANT DAVID GRIECO, Shield No. 3830, Criminal Intelligence Section

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MARTIAL AMILCAR, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on October 23, 2018, at approximately 11:00 pm plaintiff was a lawful passenger in a vehicle driven by a college classmate who was driving plaintiff and another classmate home from a school related concert they attended at the Barclay's Center in Brooklyn, New York. The driver was lawfully driving in the vicinity of 3109 Clarendon Road, Brooklyn, New York when the individually named defendant police officers pulled the vehicle over without reasonable suspicion or probable cause to believe the driver or any of the vehicle's occupants committed a crime or violated the law in any manner. The defendants unlawfully stopped questioned, frisked, searched, and falsely arrested/ imprisoned plaintiff without probable cause or any legal justification. The defendant's also maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Defendants initiated a criminal prosecution against plaintiff without probable cause and falsified allegations against plaintiff and communicated the false allegations to the Kings County District Attorney's Office. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial. Plaintiff was unlawfully detained by

defendants for approximately 25 hours before he was arraigned in Kings County Criminal Court and charged with several serious crimes he did not commit and that defendants lacked probable cause to accuse him of committing. Plaintiff was remanded into NYC Department of Correction custody at arraignment because he was unable to post bail, and he was unlawfully detained at the Brooklyn Detention Center for approximately 6 additional days until he was able to post bail and was released from custody. The experience of being detained inside of a jail and unable to speak with his friends and family while there were serious felony criminal charges pending against him caused plaintiff to suffer extreme emotional distress and anxiety. Additionally, plaintiff was terrified for the entire time he was unlawfully detained. Plaintiff was forced to appear in Criminal Court on 2 occasions before the DA's Office moved to dismiss and seal all charges brought against plaintiff because it could not prove its case beyond a reasonable doubt and all charges were dismissed and sealed in their entirety on November 8, 2018. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff MARTIAL AMILCAR is a resident of the state of New York.

3. DETECTIVE GREGORY VASQUEZ, Shield No. 3657, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE GREGORY VASQUEZ, Shield No. 3657, was at all times relevant herein, assigned to the 67th Precinct and is currently assigned to the Gun Violence Suppression Division, Zone 1.

5. DETECTIVE GREGORY VASQUEZ, Shield No. 3657, is being sued in his individual and official capacity.

6. DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, is and was at all times relevant herein, assigned to the 67th Precinct and is currently assigned to the Criminal Intelligence Section.

8. DETECTIVE FLAGUMY VALCOURT, Shield No. 3636, is being sued in his individual and official capacity.

9. SERGEANT DAVID GRIECO, Shield No. 3830, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT DAVID GRIECO, Shield No. 3830, was at all times relevant herein, assigned to the 67th Precinct and is currently assigned to the Criminal Intelligence Section.

11. SERGEANT DAVID GRIECO, Shield No. 3830, is being sued in his individual and official capacity

12. New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. By way of background, on October 23, 2018, plaintiff attended a concert at the Barclay's Center in Brooklyn.

19. The outing to the concert was organized by a student group from plaintiff's college, and many students from his school attended the event.

20. Plaintiff's friend from college drove him to the concert at the Barclay's Center.

21. Plaintiff's friend drove plaintiff to the concert without incident and plaintiff enjoyed the concert with his fellow classmates, without incident.

22. When the concert was over the people from plaintiff's school who organized the outing attempted to find rides home from the concert for any student from their school that did not have a ride.

23. Plaintiff's friend who drove plaintiff to the concert was also going to drive plaintiff home from the concert.

24. Plaintiff's friend who was going to drive plaintiff home from the concert was asked to drive an individual named Adam Decterin home from the concert because he lived near plaintiff and plaintiff's friend with the vehicle.

25. Although neither plaintiff nor plaintiff's friend knew Adam Decterin, plaintiff's friend agreed to drive Adam Decterin home because he was a college classmate and because it was not out of the way to drive him home.

26. At approximately 10:30 PM on October 23, 2018, plaintiff, plaintiff's friend, and Adam Decterin got into plaintiff's friend's vehicle to drive home from the concert.

27. Plaintiff's friend sat in the driver's seat, plaintiff was seated in the front passenger seat, and Adam Decterin was seated in the back seat immediately behind the driver.

28. Plaintiff's friend lawfully drove the vehicle for approximately 20 minutes without incident.

29. At approximately 11:00 PM on October 23, 2018, plaintiff's friend was lawfully driving in the vicinity of 3109 Clarendon Road when defendants pulled plaintiff's friend's vehicle over without reasonable suspicion or probable cause to believe plaintiff's friend, plaintiff, or Adam Decterin committed a crime or violated the law in any manner.

30. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the police officers have an objective factual basis to suspect plaintiff committed a crime or violated the law.

31. Nevertheless, the defendant police officers pulled plaintiff's friend's vehicle over, exited their vehicle, and approached plaintiff's friend's vehicle on either side, with their guns drawn.

32. The defendants told plaintiff's friend that they stopped him because he had Pennsylvania license plates and they wanted to see why he was driving in the area.

33. Plaintiff's friend told the defendant officers that he was driving the passengers in his vehicle home from the concert that they just attended at the Barclay's Center.

34. The officers asked for plaintiff's friend's insurance, registration, and driver's license and plaintiff's friend provided them all to the officer.

35. Plaintiff's friend's vehicle was registered, insured and plaintiff's friend's driver's license was active and valid.

36. Then the officers unlawfully ordered everyone to exit the vehicle, one person at a time.

37. Although the defendant police officers did not have a legal basis to order plaintiff to exit the vehicle, plaintiff obeyed the order and stepped out of the vehicle.

38. The officers proceeded to unlawfully search plaintiff without probable cause or any legal basis to search plaintiff.

39. The defendant police officers did not recover any illegal drugs, weapons, or contraband pursuant to their search of plaintiff.

40. Then, the defendant officers instructed plaintiff and the passengers of his vehicle to stand in the rear of the vehicle while the officers unlawfully searched the vehicle without probable cause or legal justification.

41. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

42. However, after the officers searched plaintiff's vehicle they unlawfully handcuffed plaintiff and placed him under arrest without informing plaintiff why they were arresting him.

43. Plaintiff and the two other individuals he was with in vehicle were all arrested and transported to the 67th precinct against their will.

44. At the 67th precinct the officers unlawfully searched plaintiff again without probable cause.

45. The defendant officers did not recover any illegal drugs weapons or contraband from plaintiff pursuant to their search of him at the precinct.

46. Plaintiff was unlawfully interrogated at the precinct, outside the presence of an attorney, by the defendants, about whether he had knowledge of any guns that people possessed in the area.

47. The defendants offered to pay plaintiff to work for them and provide them, with information about individuals in the neighborhood who possessed guns.

48. Plaintiff did not have any knowledge about individuals in the neighborhood who possessed guns and could not provide the defendants with the information they were asking for.

49. The unlawful interrogation of plaintiff by defendants that occurred outside the presence of an attorney lasted for approximately 15 minutes.

50. Thereafter, defendants unlawfully photographed, fingerprinted, and detained plaintiff in a holding cell at the 67th precinct until the following morning.

51. Additionally, while plaintiff was detained at the 67th precinct the defendant police officers obtained plaintiff's DNA from him without his consent and without him knowing the defendants were seizing his DNA.

52. The defendant officers offered plaintiff a drink of water and after plaintiff drank the water from a paper cup the defendants recovered the paper cup, removed a sample of plaintiff's DNA from the portion of the cup where plaintiff placed his lips while he was drinking the water, and vouchered the cup.

53. Upon information and belief, plaintiff's DNA is now in a law enforcement database containing the DNA of many individuals, and plaintiff's DNA can now be used by law enforcement as part of their criminal investigations.

54. Given that plaintiff was falsely arrested, the officer unlawfully seized his DNA and entered it into an NYPD and/ or other law enforcement database.

55. On the morning of October 24, 2018, the defendant police officers transported plaintiff to Kings County Central Booking whereat the unlawful detention of plaintiff continued.

56. Plaintiff was unlawfully detained in several large holding cells with numerous other prisoners at central booking.

57. The other prisoners that plaintiff was detained with at Central Booking had been accused and arrested for a variety of crimes, some of which were violent.

58. The experience of being detained with the other prisoners was terrifying for plaintiff and caused him to suffer from severe emotional distress.

59. Plaintiff was falsely arrested and unlawfully detained for 24 hours and 21 minutes before he was finally arraigned in Kings County Criminal Court.

60. The defendant police officers provided the District Attorney's Office with false, incomplete, and misleading evidence and information regarding their basis for arresting plaintiff and charging him with crimes

61. . Specifically, defendant Sergeant David Grieco falsely alleged that he observed plaintiff in possession of a loaded gun.

62. Additionally, Sergeant Grieco, withheld from the DA's Office, the allegation that the firearm was allegedly recovered from the possession of Adam Decterin and was never in the possession, custody or control of plaintiff.

63. Sergeant Grieco withheld from the DA's Officer the fact that the officers did not possess any factual basis to believe plaintiff even had any knowledge that Adam Decterin allegedly possessed a gun.

64. Even based upon the officers version of events, the defendant officers lacked probable cause to arrest and charge plaintiff with possession of the firearm because the officers lacked any factual basis to allege he possessed the gun and defendants had evidence that someone other than plaintiff possessed the firearm.

65. The defendant police officers' own factual allegations about what they observed demonstrates that none of the officers observed plaintiff in possession of a loaded gun.

66. The defendant police officers allege that after plaintiff stepped out of the vehicle during the car stop one of the defendant officers observed Adam Decterin (the individual that plaintiff did not know prior to the car ride home from the concert) sitting in the back seat, reach toward the floor of the vehicle, and remove something from his person and place it under the seat in front of him.

67. After the defendant police officer witnessed Adam Decterin hide an object underneath the seat in front of him, defendants immediately removed Adam Decterin from the vehicle and allegedly recovered a gun from the location where Adam Decterin placed the item.

68. Additionally, according to the defendant police officers, Adam Decterin admitted that the gun belonged to him and told the officers that he "found it in the street," and stated to the officers, "[w]hen you pulled us over, I put it under the seat."

69. In fact, defendants possessed evidence that suggested Adam Decterin was the only person in the vehicle who had knowledge, possession, custody, or control over the gun.

70. Defendants did not make any factual allegations whatsoever that suggest plaintiff was seen in possession of a firearm, that plaintiff made any statements about a firearm, or that plaintiff knew anything about a firearm.

71. Plaintiff was was arrested and charged with possession of a firearm by the defendants even though defendants did not possess any facts or evidence that supported the false allegations made in the Criminal Court Complaint by Sergeant David Grieco, that he observed plaintiff in possession of a loaded gun.

72. A criminal prosecution was initiated against plaintiff without probable cause or legal justification, based upon the false, misleading, and incomplete evidence and allegations presented by the defendant officers against plaintiff.

73. Plaintiff was maliciously prosecuted and denied the right to due process/the right to a fair trial by defendants.

74. On October 24, 2018 at approximately 11:45 PM plaintiff was arraigned and charged with serious felony crimes he did not commit and that the officers lacked probable cause to accuse him of committing in Kings County Criminal Court.

75. Specifically, plaintiff was charged with One Count of Criminal Possession of a Weapon in the Second Degree (PL 265.03(3)), a class C felony, Criminal Possession of a Firearm (PL 265.01-B(1)), and Criminal Possession of a Weapon in the Fourth Degree (PL265.01(1)).

76. Bail was set at arraignment in the amount of \$10,000 secure bond or \$10,000 cash.

77. Plaintiff was initially unable to post bail.

78. Consequently, plaintiff was remanded into New York City Department of Corrections custody and unlawfully detained at the Brooklyn Detention Center.

79. Plaintiff was detained for an additional approximately 6 days in DOC custody at the Brooklyn Detention Center before he was released from custody.

80. Defendants false allegations made against plaintiff caused him to be detained in a very dangerous jail system run by the NYC Department of Corrections and as a result plaintiff was attacked by other prisoners at the Brooklyn Detention Center while he was in DOC custody and he suffered injuries to his body from being attacked, assaulted and battered by the prisoners.

81. Plaintiff was required to make two court appearances in Kings County Criminal Court before the false charges brought against him were dismissed.

82. On November 8, 2018, all charges pending against plaintiff were dismissed and sealed in their entirety after the District Attorney's Office affirmatively moved to dismiss the charges because, according to the District Attorney's office they did not have enough evidence to prove the allegations made against plaintiff.

83. The criminal prosecution against plaintiff in this case was initiated based upon the defendant officers' false, misleading, and incomplete allegations against plaintiff.

84. All of the charges brought against plaintiff were based upon defendants' fabricated, misleading and incomplete allegations against plaintiff.

85. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess an objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

86. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

87. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

88. Defendant Sergeant David Grieco has a very lengthy and well documented history of engaging in police misconduct as a NYPD police officer and violating the Constitutional Rights of members of the public.

89. Numerous complaints and lawsuits have been filed against Sergeant Grieco by members of the public throughout his career, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether Sergeant Grieco engaged in misconduct and therefore did not discipline Sergeant Grieco for a majority of the complaints made against him.

90. Even on the many occasions where the NYPD determined that Sergeant Grieco had engaged in police misconduct, the NYPD disciplined Sergeant Grieco in a manner that was insufficient to address the misconduct engaged in by Sergeant Grieco.

91. Sergeant Grieco has continued to violate the Constitutional Rights of members of the public because he never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feels as if he can continue engaging in the unlawful behavior without any serious consequences. The deliberate indifference by the NYPD and defendant City of New York towards its officers and Sergeant Grieco when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because Sergeant Grieco knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

92. Given Sergeant Grieco's extensive history of engaging in serious police misconduct toward members of the public, Sergeant Grieco should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly disciplined Sergeant Grieco prior to the date of plaintiff's arrest in this case.

93. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the

rights of members of the public, especially if the officers are violating the rights of minority males in their teens or twenties because that segment of the population is often ignored when they make complaints and the NYPD feels no pressure to take their complaints against NYPD officers seriously.

94. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of the right to due process/ a fair trial, and unlawful seizure of plaintiff's vehicle by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

95. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause and to have his vehicle unlawfully seized, in violation of plaintiff's right to be free from an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

97. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

104. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

108. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

110. Defendants lacked probable cause to search plaintiff.

111. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

114. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

115. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

116. Defendants commenced and continued a criminal proceeding against plaintiff.

117. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

118. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

119. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

120. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Due Process and the Right to Fair Trial

121. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 120 with the same force and effect as if fully set forth herein.

122. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

123. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

124. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

125. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

126. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

129. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein.

130. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

131. Defendants failed to intervene to prevent the unlawful conduct described herein.

132. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

133. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution

134. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 133 with the same force and effect as if more fully set forth at length herein.

135. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, denied the right to due process without an objective factual legal basis to stop, seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendant Sergeant David Grieco engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

136. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, and falsely arrest, fabricate evidence, maliciously prosecute, and deny members of the public the right to due process without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

137. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth and Fourteenth Amendment Rights of members of the public.

138. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment, malicious prosecution, and denial of due process because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search, falsely arrest, maliciously prosecute, and deny due process to members of the public when there is no factual basis to suspect the individual has committed a crime.

139. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

140. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

141. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, falsely arrest, maliciously prosecute, and deny due process to individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these stops and searches, arrests and prosecutions without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

142. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

143. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for jaywalking.

144. The City of New York has acted with deliberate indifference to the Fourth, Fifth, and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

145. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

146. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Martial Amilcar demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 23, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 23, 2021

/s/
DAVID M. HAZAN